

**CHAPTER 24.**

An Act to make further and temporary provision for enabling the reserve and auxiliary forces of the Crown to be called out for service as may be found necessary; and for purposes connected with the matter aforesaid. [25th May 1939.]

WHEREAS a situation has arisen in which it is necessary that His Majesty should be empowered, whenever the service of members of His reserve and auxiliary forces is urgently required for ensuring preparedness for the defence of the realm against any external danger, to call out for service such of them as may be needed :

Now, therefore, be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) During the continuance in force of this Act, His Majesty may by Order in Council authorise the Admiralty and the Secretaries of State respectively to call out for service all or any of the members of His reserve and auxiliary forces, if satisfied that their service is urgently required for ensuring preparedness for the defence of the realm against any external danger, and to give directions as to the calling out for service under this Act of persons authorised by the Order to be called

Calling out
of reserve
and
auxiliary
forces.

out, and for the termination of such service as the occasion may require, and to vary or revoke any such directions.

(2) In this section the expression "His Majesty's reserve and auxiliary forces" includes—

- (a) persons who have served as petty officers or seamen in the royal navy or as non-commissioned officers or men of the royal marine forces, and are in receipt of pensions in respect of such service; and
- (b) persons who are members of any of His Majesty's reserves of officers, or who have served as officers in the royal navy, royal marines or regular air force and are under any liability to be called out for service.

(3) Where any person is called out for service under this section, he shall be deemed—

- 22 & 23 Vict.
c. 40. (a) in the case of a member of any naval reserve force to which the Royal Naval Reserve (Volunteer) Act, 1859, applies, to have been called into actual service under section four of that Act;
- 16 & 17 Vict.
c. 73. (b) in the case of a person who has served as a petty officer or seaman in His Majesty's navy and is in receipt of a pension in respect of such service, to have been ordered under section sixteen of the Naval Volunteers Act, 1853, to join the royal navy;
- 47 & 48 Vict.
c. 46. (c) in the case of a person who has served as a non-commissioned officer or man of the royal marine forces and is in receipt of a pension in respect of such service (not being a member of the army reserve), to have been ordered by virtue of section four of the Naval Enlistment Act, 1884, to serve in the royal marine forces;
- 45 & 46 Vict.
c. 48. (d) in the case of a member of the army reserve or air force reserve to have been called out on permanent service by virtue of a proclamation made under section twelve of the Reserve Forces Act, 1882;
- (e) in the case of a member of the territorial army or auxiliary air force, to have been embodied

in pursuance of directions given under subsection (1) of section seventeen of the Territorial and Reserve Forces Act, 1907; and

7 Edw. 7.
c. 9.

- (f) in the case of any such person as is mentioned in paragraph (b) of the last foregoing subsection, to have been called out for service under the Order in Council, regulations, warrant or other instrument by which his liability to be called out for service, apart from the provisions of this Act, is determined.

(4) Any Order in Council made under this section shall be laid before Parliament as soon as may be after it is made.

(5) Section thirteen of the Reserve Forces Act, 1882, and the proviso to subsection (1) of section seventeen of the Territorial and Reserve Forces Act, 1907, and subsection (2) of the said section seventeen shall not apply in the event of the calling out of members of the reserve or auxiliary forces in pursuance of an Order in Council made under this section.

(6) Any Order in Council made under this section may be revoked or varied by a subsequent Order made in like manner.

2.—(1) It shall be the duty of any employer by whom a person called out for service under this Act was employed when he was so called out, to reinstate him in his employment at the termination of that service in an occupation and under conditions not less favourable to him than those which would have been applicable to him had he not been called out, and if he fails to do so the employer shall, subject as hereinafter provided, be liable on summary conviction to a fine not exceeding fifty pounds; and the court by which any employer is found guilty of an offence under this section may order him to pay to the person whom he has failed to reinstate, a sum not exceeding an amount equal to twelve weeks' remuneration at the rate at which his remuneration was last payable to him by the employer:

Reinstatement in
civil employment.

Provided that in any proceedings under this subsection it shall be a defence for the employer to prove that the person formerly employed by him did not before the expiration of one month after the termination

of such service as aforesaid apply to the employer for reinstatement, or that, having been offered reinstatement by him, he failed without reasonable excuse to present himself for employment at the time and place notified to him by the employer, or that by reason of a change of circumstances (other than the engagement of some other person to replace him)—

- (a) it was not reasonably practicable to reinstate him; or
- (b) his reinstatement in an occupation and under conditions not less favourable to him than those which would have been applicable to him had he not been called out, was impracticable, and that the employer has offered to reinstate him in the most favourable occupation and under the most favourable conditions reasonably practicable.

(2) For the purpose of securing the fair adjustment of contracts of service or apprenticeship in force between employers and employees when the employees are called out for military service under this Act, the Minister of Labour may make regulations relieving the parties to such contracts of all or any of their obligations thereunder in respect of the period of that military service, and may also make regulations modifying such contracts by extending the period of service or apprenticeship thereunder by a period not exceeding the period of the said military service and adapting the terms of the contracts in relation to any such extension.

(3) In relation to any person called out for service under this Act, references in this section to an employer shall be construed as including references to any person for the time being carrying on the undertaking or service in which he was employed when called out for service, or carrying on any undertaking or service with which that undertaking or service has been amalgamated or in which it was comprised on the date on which he was called out.

(4) If the Minister of Labour is satisfied that it is necessary to restrain employers from terminating the employment of their employees by reason of any duties or liabilities which they are or may become liable to perform or discharge by virtue of the provisions of this

Act, or to make provision for the prevention of evasion of the provisions of this section, he may make regulations for those purposes, and such regulations may make provision for the punishment of breaches of the regulations and may in particular apply with respect to persons found guilty of such breaches of any of the provisions of this section relating to persons found guilty of offences under this section, with or without modifications.

(5) Any regulations made under this section by the Minister of Labour shall, as soon as may be after they are made, be laid before Parliament; and if either House of Parliament within the period of forty days beginning with the day on which any such regulations as aforesaid are laid before it, resolves that the regulations be annulled, they shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(6) Section one of the Rules Publication Act, 1893, shall not apply to any regulations made under this section. 56 & 57 Vict.
c. 66.

3.—(1) Where, in pursuance of section nineteen of the Defence Act, 1842, notice to treat is given by the Admiralty or a Secretary of State with respect to any land required for the purposes of this Act, the Admiralty or the Secretary of State, as the case may be, may, at the same time as, or at any time after, the service of that notice, give to the owner and to the occupier of that land, in the manner prescribed by section forty-five of the Defence Act, 1860, in relation to notices required to be given by the Admiralty or Secretary of State, notice of intention to enter on and take possession of the land or any specified part thereof at the expiration of the period of fourteen days beginning with the date of the service of the last-mentioned notice; and at any time after the expiration of the said period the Admiralty or the Secretary of State, as the case may be, may, if then entitled under the Defence Acts, 1842 to 1935, to take the land, enter on and take possession of the land or that part thereof, without consent or compliance with the said section nineteen. Simplifica-
tion of pro-
cedure for
obtaining
possession
of land taken
under
Defence
Acts.

9 & 10
Geo. 5. c. 57.

(2) Where possession of any land is taken under the foregoing provisions of this section, then, notwithstanding that the case is one in which the land is not to be acquired by way of absolute purchase, the amount of compensation to be paid shall, in default of agreement, be determined by an official arbitrator appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919, who shall conform to the rules prescribed by that Act, subject to such modifications as may be necessary to render them applicable to such cases.

Power to
provide for
conse-
quential
matters.

4.—(1) Subject to the provisions of this section, His Majesty may by Order in Council make provision for such consequential matters as it appears to him expedient to provide for by reason of the passing of this Act, and may by any such Order modify any enactment relating to such matters.

(2) Any Order in Council made under this section may provide for the continuance of any provisions contained therein after the expiry of this Act and any such Order may, while this Act is in force, be varied or revoked by any subsequent Order made in like manner as the original Order.

(3) The draft of any Order in Council proposed to be made under this section shall not be submitted to His Majesty unless it has been approved by resolutions passed by each House of Parliament :

Provided that if at any time when Parliament is dissolved or prorogued, or when both Houses of Parliament are adjourned for more than fourteen days, it is shown to the satisfaction of the Admiralty or a Secretary of State that the making of an Order in Council under this section is urgently necessary, a draft of the Order need not be laid before Parliament, but the Order shall, except as respects things previously done or omitted to be done, cease to have effect at the expiration of the period of twenty-eight days beginning with the date on which the Commons House first sits after the making of the Order, unless within that period resolutions approving the making of the Order are passed by both Houses of Parliament.

Expenses.

5. Any expenses incurred by any Secretary of State or other Minister of the Crown in consequence of the passing of this Act or the making of an Order in Council

thereunder shall be defrayed out of moneys provided by Parliament.

6.—(1) Subject to the provisions of this section, this Act shall continue in force for the period of three years beginning with the date of the passing of this Act, and shall then expire : Duration
of Act.

Provided that if, at any time while this Act is in force, an address is presented to His Majesty by each House of Parliament praying that this Act should be continued in force for a further period of one year from the time at which it would otherwise expire, His Majesty may by Order in Council direct that this Act shall continue in force for that further period.

(2) Notwithstanding anything in the foregoing subsection, if His Majesty by Order in Council declares that the necessity for the powers conferred upon Him by this Act has ceased to exist, this Act shall expire at the end of the day on which the Order is expressed to come into operation.

(3) The expiry of this Act shall not affect anything previously done or omitted to be done thereunder or the operation of any provisions of an Order in Council made under section four of this Act with respect to which the Order provides that they shall continue after the expiry of this Act; and, if this Act expires otherwise than in pursuance of an Order in Council made under the last foregoing subsection, any persons who, at the time when this Act expires, are in service under obligations imposed on them by virtue of this Act shall not be released from those obligations by the expiry thereof, but the Admiralty, the Army Council or the Air Council, as the case may require, shall give directions for the termination of such service as soon as may be.

7. This Act may be cited as the Reserve and Short title.
Auxiliary Forces Act, 1939.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament